

Guidance: Formation of Unit Committees

CSUB Faculty Affairs

March 14, 2025

Please note that each of these statements reflect our obligations under the [Unit 3 CBA](#) and/or the [University Handbook](#) (citations are provided for your reference). This is a lot of information, but it answers >90% of the questions that are asked each year.

1. Unit Committees must be constituted by **election** (Article 15.41; Section 305.6.1.a, 306.3.f).
2. Only tenured faculty can be elected (Articles 15.2, 15.41; Section 305.6.1.a, 306.3.f).
3. All eligible tenured faculty (except FERP faculty; Section 305.6.1.a) are obligated to serve, if elected (Section 305.4.1.e).
4. “Tenured faculty” includes FERP faculty during their period of active employment (Article 29.19). This means that FERP faculty who are full-time for Fall semester or part-time for both semesters can participate in reviews conducted during Fall semester. FERP faculty who are only active during Spring semester are not eligible to serve on Unit Committees during Fall semester.
5. FERP faculty *may* serve on Unit Committees (Articles 15.2, 15.41; Section 305.6.1.a), but are not *required* to serve (Section 305.6.1.a). A Unit Committee cannot consist of *only* FERP faculty members (Articles 15.2, 15.41).
6. All probationary and tenured faculty (including active FERP faculty) in the department are eligible to vote in all Unit Committee elections (Article 15.41). This includes PTR committee elections (Section 306.3.f).
7. Each Unit Committee shall consist of no fewer than 3 members from within the department (Section 305.6.1.d, 306.3.f).
8. If the department has fewer than 3 members qualified to serve, all eligible members are expected to serve (Section 305.6.1.d, 306.3.f). and the department must elect one or more eligible committee members from other units to fill the remaining seats up to a total of 3 members (Article 15.41; Section 305.6.1.d, 306.3.f). This provision does not allow qualified faculty members from within the department to be replaced by faculty members from outside the department, because it only applies if the department doesn’t have enough tenured members and only fills the remaining seats.
9. Faculty may serve on the Unit Committee of more than one unit/department during a given RTP cycle (Section 305.6.1.g).
10. A Department Chair who chooses to write a separate Chair review cannot also serve on the Unit Committee (Articles 15.21, 15.40; Section 305.4.3.a.2, 305.6.1.i, 305.6.4, 306.3.i).
11. The Chair review is an independent evaluation that occurs in parallel (at the same time) as the Unit review (Section 305.6.1.i, 306.3.i).
12. Tenured faculty members seeking promotion to Professor cannot serve on RTP or PTR committees (Section 305.6.1.h).
13. Tenured faculty members undergoing PTR (without promotion) can serve on RTP committees (Section 305.6.1.h) but cannot serve on PTR committees (Section 306.3.k).

14. In promotion considerations (RTP & PTR), Unit Committee members must have a higher rank than those being considered for promotion (Article 15.43; Section 305.6.1.f).
15. It is the Dean's responsibility to ensure that Unit Committees are appropriately constituted (Section 305.6.1).
16. Failure to follow the CBA and Handbook procedures for forming Unit Committees could result in the file being returned to the department to be reviewed by a reconstituted committee (Section 305.6.1).

Special Cases

1. Faculty shall not sit in review of their own cases, or that of a close relative or domestic partner (Section 305.4.1.f).
2. Faculty serving as President of the CFA, Director of the Teaching and Learning Center, or Director of Assessment are not eligible to serve on a Unit Committee (Section 305.6.1.a).
3. University Review Committee (URC) members cannot serve on Unit Committees (Article 15.42; Section 305.6.1.j, 305.8.1).
4. A faculty serving as a Dean (including Assistant or Associate Dean) shall not serve on any Unit Committee (Section 305.6.1.j).
5. Any faculty member undergoing review who believes that they have a compelling issue that may affect an objective review, may confer with the Provost's office and/or a member of CFA's Faculty Rights Committee for support and guidance in ensuring a fair review process (Section 305.4.1). *If a faculty member under review asks to exclude a specific tenured faculty member from their Unit Committee, please reach out to Faculty Affairs for guidance in advance. This is not something that should be discussed at a full department meeting, and ideally would be handled prior to the election of the faculty member's Unit Committee.*
6. At the candidate's discretion, for unstated reasons, the candidate may request a specific eligible member from within or outside the unit to serve as an additional member of the committee. This member serves in addition to the three or more faculty elected by the unit. The requested member shall serve as a voting member of the Unit Committee for the requesting faculty case only. Such members shall not participate in the review of any faculty except those who have requested their service (Sections 305.6.1.b and 306.3.g – recently updated under [RES 232406](#)). *This is informally known as the "4th member" or "additional member" provision. If a faculty member under review requests a 4th/additional member, please reach out to me for guidance.*